

**RESOLUTION TO ADOPT
SPECIAL EDUCATION MODEL POLICIES AND PROCEDURES**

WHEREAS, Ohio Revised Code § 3323.08 requires each school district to provide assurances to the Ohio Department of Education and Workforce ("DEW") that the District will provide for the education of children with disabilities within its jurisdiction and has in effect policies, procedures, and programs that are consistent with the policies and procedures adopted by DEW; and

WHEREAS, DEW developed a document entitled "Special Education Model Policies and Procedures" ("2024 Model Policies") that a board of education may adopt to fulfill the requirement described in the preceding paragraph; and

WHEREAS, the District has reviewed the 2024 Model Policies and determined that certain statements within the 2024 Model Policies conflict with existing State and Federal laws and/or applicable caselaw;

NOW, THEREFORE, BE IT RESOLVED, that the Board of Education hereby adopts DEW's 2024 Model Policies in their entirety except for the following sentences, which are specifically rejected in their current form and will not be implemented as written. The Board directs that the language identified below shall be considered either modified as specified or, where indicated, deleted to ensure the District complies with applicable State and Federal laws and/or caselaw:

- **P. 10. Destruction of Educational Records.**

- Original Language: "Ensures the information is destroyed at the request of the parents."
- Action: Replace sentence with "Once a parent is notified that personally identifiable information maintained by the District is no longer required to provide educational services to their child, or is not otherwise required to be maintained by the District based on State or Federal law or applicable retention schedules, the parent may request that the information be destroyed."

- **P. 14. Independent Education Evaluation at Public Expense.**

- Original Language: "An educational agency may not impose conditions or timelines related to obtaining an IEE, except for the criteria described above."
- Action: Delete this sentence in its entirety.

- **P. 33. Extended School Year.**

- Original Language: "The IEP team should consider emerging skills as part of the IEP process for children who are exhibiting beginning skillsets."
- Action: Delete this sentence in its entirety.

- **P. 42. Services.**

- Original Message: “Although not required, educational agencies are encouraged to provide services during short-term removals to assist children with disabilities to continue to make progress toward their IEP goals and prevent them from falling behind.”
- Action: Delete this sentence in its entirety.

BE IT FURTHER RESOLVED, that the Board directs all staff in the District to use and comply with the 2024 Model Policies (as modified herein). The Board further authorizes the Superintendent to notify DEW of the Board’s adoption of the modified 2024 Model Policies through DEW’s monitoring systems by uploading a copy of this Board resolution by March 30, 2025, and by November 30 for each subsequent school year; and

BE IT FURTHER RESOLVED, the Board acknowledges that the 2024 Model Policies (as modified herein), while comprehensive, do not include every requirement set forth in the IDEA, the regulations implementing IDEA, the Ohio Operating Standards, the Ohio Revised Code, and/or the Ohio Administrative Code, and the Board recognizes its obligation to follow these laws and regulations, as well as applicable caselaw, in the event there is a conflict between their requirements and the Board-adopted 2024 Model Policies (as modified herein).

_____ moved and _____ seconded the motion that the above Resolution be adopted.

Upon roll call and the adoption of the Resolution, the vote was as follows:

Yeas: Nays:

ADOPTED this 19th day of March, 2025.

Treasurer/CFO

CERTIFICATE

The undersigned hereby certifies that the foregoing is a true and correct copy of a Resolution adopted at a meeting held on the **19th day of March, 2025**, together with a true and correct extract from the minutes of said meeting to the extent pertinent to consideration and adoption of said Resolution.

Treasurer/CFO